

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

The petitioner seeks a reserve of \$120,000. Because the requested reserve exceeds \$5,000, the court will impose a requirement for an informal accounting prior to or concurrently with any ex parte application for discharge. (Solano County Local Rules, Rule 7.66(e).

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IN THE MATTER OF THE RAY AND MERCEDES ODOM LIVING TRUST DATED OCTOBER 12, 1992 PR25-00746

Verified Petition For (1) Removal of Successor Trustee For Abandonment; (2) Appointment and Confirmation of Successor Trustee; (3) Accounting; (4) Delivery of Trust Property; and (5) Bond Waiver or, In the Alternative, Provisional Bond

PREGRANT ORDER

This matter was continued from January 7, 2026, March 23, 2026 and May 13, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Supplemental Declaration filed March 4, 2026 and March 19, 2026 and other documents which did not resolve all issues. The following issues remain unresolved. In addition, at the last hearing Counsel for Trustee stated his verbal objection and intent to file a written objection. However, there is no written objection on file.

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The copy of the trust attached to the petition indicates that the trust is governed by Oklahoma law, and the petition states the current trustee resides in Oklahoma. It is unclear how the court has jurisdiction over the trustee or the administration of the trust given Probate Code sections 17002 through 17205. The Declaration appears to state that because the beneficiary lives in California, that gives this court jurisdiction over the trust which is not compliant with Probate Code section 17002.
2. There is no Proof of Service showing that the Supplemental Declaration was served on all interested persons. There is a proof of service for the initial petition and notice of the hearing, but not the supplemental declaration.